CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
FEBRUARY 08, 2012
7:00 P.M.
Opa-locka Municipal Complex
780 Fisherman Street, 2nd Floor
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Myra L. Taylor called the meeting to order at 7:00 p.m. on Wednesday, February 08, 2012 on the 2nd Floor of the Opa-locka Municipal Complex, 780 Fisherman Street, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Dorothy Johnson, Commissioner Timothy Holmes, Commissioner Gail E. Miller and Mayor Myra L. Taylor. Also in attendance were: City Manager Bryan K. Finnie, City Attorney Joseph L. Geller and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Vice Mayor Dorothy Johnson.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following resolutions were pulled from the consent agenda to be discussed separately under agenda item 15 – Action Items: 19-1, 19-4, 19-5, 19-7, 19-10, 19-11, 19-12 (Vice Mayor Johnson) and 19-2, 19-3, 19-6, 19-8, and 19-9 (Commissioner Holmes).

Commissioner Holmes requested to move agenda items 19-10 and 19-11 under agenda item 10 – public hearings. Although 19-10 requires a public hearing and 19-11 doesn't, he said he would like to place both items under the public hearing to allow the opportunity for anyone to come up and speak.

Commissioner Tydus asked, in terms of pulling agenda items 19-10 and 19-11, are public hearings required to be advertised and noticed?

Attorney Geller advised that a public hearing can be held and the items are advertised as items for its agenda and it is up to the Commission if they want to open it up to the public.

Vice Mayor Johnson asked, what is the purpose of the Charter to state that the public hearing must be publicized? She further asked, how would anyone be aware of the public hearing if it had not been properly notified?

Attorney Geller stated that if the item was not on the agenda then the Commission could not consider that; if there's not public notice given on those items then they could not be discussing the items. The items are on the agenda, but the real affect of what the Commission is doing is just to say that any member of the public could be heard on. Those items are already in front of the Commission for action, for hearing discussion and they could open them up for discussion.

Vice Mayor Johnson stated that in her 11 years she had never seen anything like what he is stating done. She asked that the City Attorney provide her with his reference of what it is and where is it not different in the charter because she doesn't appreciate him making up stuff at the meetings. The public hearing must be posted for everyone to be aware of it.

Commissioner Miller agreed with Vice Mayor Johnson because she had never seen any items pulled from the Consent Agenda and placed under public hearings.

Mayor Taylor suggested that the Commission keep in mind that the City Attorney has to defend the city so if it is an error than he has to stand for it.

Manager Finnie deferred agenda items 18A1 and 18A2 to the next regular commission meeting.

Request to amend the agenda to include the following items under agenda item 16 – New Items:

16-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DETERMINE SEVERANCE PAY FOR CITY MANAGER BRYAN K. FINNIE IN THE EVENT OF HIS RESIGNATION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by M.T.*

It was moved by Commissioner Holmes, (Mayor Taylor relinquished the gavel to Vice Mayor Johnson) seconded by Mayor Taylor to amend the agenda to include item 16-1.

There being no discussion, the motion to amend failed by a 3-2 vote.

Commissioner Holmes	Yes
Commissioner Tydus	No
Commissioner Miller	No

Mayor Taylor	Yes
Vice Mayor Johnson	No

Vice Mayor Johnson returned the gavel to Mayor Taylor.

16-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DETERMINE SEVERANCE PAY FOR CITY CLERK DEBORAH S. IRBY IN THE EVENT OF HER RETIREMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by M.T.*

It was moved by Commissioner Holmes, (Mayor Taylor relinquished the gavel to Vice Mayor Johnson) seconded by Mayor Taylor to amend the agenda to include item 16-2.

Commissioner Miller asked, how is this resolution brought forth to determine severance pay for someone who is retiring? She further asked, did the City Clerk provide notice that she is retiring?

Attorney Geller replied, no. The Commission could provide that if the City Clerk chose to retire, but they would give her the same severance that she would receive if she was terminated.

Commissioner Miller said that the City Clerk has not chosen to resign so why is this resolution being amended to the agenda.

Attorney Geller explained that the resolution offers the opportunity to the employee.

There being no discussion, the motion to amend the agenda failed by a 3-2 vote.

Commissioner Tydus	No
Commissioner Miller	No
Commissioner Holmes	Yes
Mayor Taylor	Yes
Vice Mayor Johnson	No

Vice Mayor Johnson stated that it was her understanding in order to amend the agenda there needs to be a motion and she hasn't heard a motion to amend the agenda to move items 19-10 and 19-11 under public hearings.

Attorney Geller stated that Vice Mayor Johnson was correct.

Commissioner Holmes said that amending the agenda was to add items, but items 19-10 and 19-11 were already on the printed agenda and he just want to put those items under the public hearing.

Attorney Geller stated that it is moving the order in which something would be heard, it is still a motion to amend the agenda.

It was moved by Commissioner Holmes, (Mayor Taylor relinquished the gavel to Vice Mayor Johnson), seconded by Mayor Taylor to amend the agenda to include agenda items 19-10 and 19-11 under public hearings.

Commissioner Holmes explained that moving these items under the public hearing would allow the City Manager an opportunity to respond to the charges presented to him at a previous commission meeting. However, agenda item 19-11 for the City Clerk doesn't require a public hearing, but that is what he is suggesting.

Because she didn't have the Code of Ordinances in front of her, Commissioner Tydus said that she believes the proper procedure is that if there are charges being made against the City Manager, that those charges are presented by resolution and then the date is set for a public hearing. This is not following the procedures provided for in the city's code.

In response to Commissioner Tydus, Commissioner Holmes said he assumed that when he directed the City Attorney to prepare a resolution and present Mr. Finnie with the charges that would have been taken care of at the last commission meeting. Since this was not done, he said that he was willing to wait another week to allow the City Manager to respond to the charges. He said he wants to make sure he does the right thing according to the law on behalf of the City of Opa-locka.

Commissioner Tydus suggested that the Commission should be considering the adoption of the resolution and if it passes, setting a date for a public hearing and response from the City Manager as it relates to these particular charges. She recalled that the City Manager had already responded to most of the charges listed. The items have been brought to his attention and he has responded to them at previous commission meetings and in writing. The City Manager has provided acceptable responses to most of these items.

Attorney Geller stated that Section 10 of the Charter does specify that the City Manager is entitled to a public hearing and an opportunity to answer to the charges, but the Commission does not need to pass the resolution. The Commission could simply take a vote to set the public hearing at which time the City Manager is given the opportunity.

Commissioner Tydus said that someone should have advised Commissioner Holmes of the process.

Attorney Geller reiterated that the Commission would not have to pass the resolution in front of them in order to set a public hearing.

Commissioner Tydus asked, at what point are the charges presented?

Attorney Geller stated that the charges were presented at the last meeting by the Commissioner and they are attached to the resolution.

Commissioner Holmes explained that he presented the charges to the City Attorney and asked that he draft a resolution to do whatever necessary to terminate the City Manager. He agreed with Commissioner Tydus that the City Manager has responded to some of the

charges, but in riding around the city, nothing has been done. He mentioned about the court cases which could have been settled in 2009 to minimize the costs to the city.

Commissioner Tydus said that the Commission has to look at themselves as well if they want to play the blame game because as it relates to personnel matters and the city's charter, the Commission has failed. The charter should have been dealt with years ago as it relates to the Civil Service Board and the city would not be faced with what they are being faced with today. The Commission cannot blame the City Manager or the citizens for that, that's on them. The Commission needs to take responsibility for those sparks they ignite that become big force fires.

Commissioner Miller stated that the City Attorney has indicated that there has to be a public hearing, but as the attorney for this city, why didn't he do that?

She continued to express her frustration with the City Attorney and suggested that he be the attorney for the entire Commission instead of one or two commissioners.

Commissioner Holmes referred back to 2009 when the Civil Service Board ruled in favor of the employees getting their jobs back, but that didn't happen. The City Manager wanted the case to go to court, not the Commission and after the court made its ruling, he brought it up several times during the commission meetings. This falls under the City Manager because the City Manager runs the day to day operations. The city lost in court and now the city has to pay this money out of the city's budget.

He spoke about Sherbondy Park and the lack of parking.

He continued to say that the City Manager has a list of the charges against him and although he may have responded to some of those charges, it is not the entire truth.

Vice Mayor Johnson stated that it is her understanding the City Attorney represents the city for legal sufficiency in court and based on what was just stated the City Attorney was persuaded to go to court.

Attorney Geller stated that he certainly had input.

Vice Mayor Johnson recalled that the City Manager put on record numerous of times that he was going to court and he was confident the city could win, but what she is hearing now is the opposite that the City Manager told the City Attorney to go to court and the City Manager could win it. She asked, who represents the city for legal sufficiency?

Attorney Geller said he represents the city for legal sufficiency.

As it relates to Sherbondy Park, Vice Mayor Johnson said the parking was brought to the Commission attention several times in the past and it was mentioned that the city will utilize the land next to the hotel building as parking. The City Commission approved the plan and it is the same plan Nwadike did that was amended. The day to day operations of the City Manager is in the shape that it is because there are too many City Managers. The City Manager cannot hold individuals accountable when they are running to Godfathers

and Godmothers of the world. The employees should do their jobs and when they don't do their jobs, they need to have consequences. There is no standard in this city for anyone to have consequences. She said she didn't care about lawsuits because everyone that goes to the Personnel Board is a click; they sue, everybody uses the same attorney and its payoff. She said she would be glad when the charter is amended because when you look at it, the city is being legally pimped and it's wrong. Accountability needs to be on the Commission and they need to stay out of the day to day operations.

She stated that the Commission has the opportunity to amend the agenda and she would like to vote on this matter and move forward.

She further stated that according to the charter, if a public hearing is going to be held, all charges need to be posted for the public hearing.

Attorney Geller stated that he didn't know what Vice Mayor Johnson meant with posted, but the charges need to be available and publicly noticed.

Vice Mayor Johnson asked, when were the charges posted?

Clerk Irby advised that the charges were never advertised.

Commissioner Holmes stated that the motion was to move agenda items 19-10 and 19-11 under agenda item 10 – public hearings; but he also stated that agenda item 19-11 didn't require a public hearing. However, he was willing to let agenda item 19-11 be placed under public hearing to allow the opportunity for input. The only item requiring a public hearing is 19-10.

Vice Mayor Johnson clarified that the motion is to move agenda items 19-10 and 19-11 under agenda item 10 – public hearing.

Commissioner Holmes indicated that he also stated that agenda item 19-11 didn't require a public hearing.

Vice Mayor Johnson suggested that Commissioner Holmes restate his motion.

Commissioner Holmes stated to Vice Mayor Johnson that if she is quoting the first part of the motion, she needs to quote the second part of the motion as well.

Mayor Taylor withdrew her second to allow Commissioner Holmes the opportunity to make his motion.

Commissioner Holmes stated that it is not the Commission responsibility to present the charges because it was presented at the last commission meeting when he presented the City Attorney with the charges. It was up to the City Clerk's Office to make sure it was done.

It was moved by Commissioner Holmes, seconded by Mayor Taylor to move agenda item 19-10 for a public hearing to give the City Manager an opportunity to respond to the charges and setting a date for the public hearing.

There being no further discussion, the motion passed by a 3-2 vote.

Commissioner Miller	Yes
Commissioner Tydus	No
Commissioner Holmes	Yes
Mayor Taylor	Yes
Vice Mayor Johnson	No

Vice Mayor Johnson returned the gavel to Mayor Taylor.

Attorney Geller advised the Commission that it would be appropriate to set the date and time for the public hearing.

Commissioner Holmes suggested that the public hearing be scheduled on February 22, 2012 at 6:30 p.m.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to set the public hearing on February 22, 2012 at 6:30 p.m.

There being no discussion, the motion failed by a 3-2 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	No
Commissioner Tydus	No
Commissioner Miller	No
Mayor Taylor	Yes

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to reconsider the previous motion to set the public hearing on February 22, 2012 @ 6:30 p.m.

There being no discussion, the motion to reconsider passed by a 4-1 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	No
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

It was moved by Commissioner Holmes, (Mayor Taylor relinquished the gavel to Vice Mayor Johnson) seconded by Mayor Taylor to set the public hearing on February 22, 2012 at 6:30 p.m.

There being no discussion, the motion passed by a 4-1 vote.

Commissioner Tydus	No
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

Vice Mayor Johnson returned the gavel to Mayor Taylor.

Commissioner Holmes provided the City Clerk with a list of charges.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

Mayor Taylor allowed the following presentation to be made out of order due to the youth present.

France Theodore
re: SWAT (Student Working Against Tobacco)

France Theodore appeared before the Commission to speak on behalf of SWAT (Students Working Against Tobacco). He expressed his appreciation with being given the opportunity to speak about candy flavored tobacco products. Several youth members of SWAT came forward and spoke about the sale of candy flavored tobacco which attracts youth. They asked for support in banning the sale of candy flavored tobacco products.

Mayor Taylor stated that the city would certainly support SWAT in their efforts. The City Commission discussed the possibility of making a motion in support of SWAT's efforts on banning the sale of candy flavored tobacco products. Commissioner Miller suggested that the Commission allow the City Attorney to draft a resolution to be considered at the next commission meeting. The Commission agreed to allow the City Attorney to bring the resolution for consideration at the next commission meeting.

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Commissioner Tydus joined by the members of the Commission presented a proclamation to Dim Chukwuemeka Odumegwu Ojukwu for the month of February 2012.

8. APPROVAL OF MINUTES:

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to approve the minutes of the Regular Commission Meeting of January 25, 2012.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

9. 17th CONGRESSIONAL DISTRICT OF FLORIDA REPORT:

10. STATE SENATORS REPORT:

11. STATE REPRESENTATIVES REPORT:

12. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

13. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

14. PUBLIC PRESENTATION:

1. Joseph L. Kelley of 2341 NW 143 Street, Opa-locka, Florida, appeared before the City Commission and expressed his concerns relating to the lack of signage on Opa-locka Boulevard for the school crossing area and the resolution on the manhole covers. He suggested that the Commission consider a partnership with the Opa-locka CDC to make some of the vacant homes available for city employees.

In reading the minutes from the Planning Council, Vice Mayor Johnson said she noticed some of the properties were mixed uses. She asked had there been any discussion relating to impact fees because she didn't see it in the recommendation.

Mr. Kelley said that the impact fees were not mentioned at the Planning Council Meeting because he assumed and hoped the Commission would work on getting impact fees from those properties.

2. Angela Warren, Site Coordinator for Opa-locka Weed & Seed of 2105 Ali-baba Avenue, Opa-locka, Florida, came forward and provided an overview of the Opa-locka Weed & Seed program. She explained that as a result of their funding ending as of March 31, 2012, the Steering Committee began pursuing the opportunity to become an independent entity as a 501c3 and the progress they have made at this point is just obtaining the articles of incorporation from the State of Florida.

Although she understood that the funding would end on March 31, 2012, Vice Mayor Johnson stated that she was under the impression that it still had to be approved by the

Commission. Since the last time this issue was discussed, there should have been a resolution coming to the Commission. The process is that the grantee is held accountable for the ultimate responsibility of anything that exists in this city. For the Opa-locka Weed & Seed to complete the articles of incorporation with a registered agent means that they are working on their own. She assumed that as of March 31, 2012, the Opa-locka Weed & Seed would be asking for monies from the city.

She requested that the City Manager provide the Commission with plans for the Opa-locka Weed & Seed.

Manager Finnie explained that he felt it appropriate prior to taking the next step that the Weed & Seed make a presentation to the Commission, after the Commission expresses their views on the Weed & Seed's plan he would come back with a resolution requesting acquiescence for their sustainability goals. He said he was looking for the blessing of the Commission as he moves forward.

Vice Mayor Johnson assumed that prior to February 22, 2012 there would be a sustainability plan and she is looking for the corporation to be discontinued until it comes before the Commission. She said she just wanted to make sure the process is followed; it is transparent, consistent and noticed.

Mrs. Warren explained that the preamble for the 501c3 status is the articles of incorporation and the Steering Committee made that decision after having discussion and conversation because of the sustainability. She said she didn't want to go against any of the standards or stipulations; they just want to continue collaborating and moving forward so that the project can continue serving the City of Opa-locka.

After hearing the comments from Mrs. Warren, Vice Mayor Johnson said she strongly supports what Weed & Seed is doing, but the process has to be approved by the Commission. She suggested that the City Manager has the discussions about this matter prior to having staff come before the Commission.

Of concern to Mayor Taylor was the fact that there are three agencies in the City of Opa-locka which she doesn't receive reports on as to what those agencies do. If the city is going to be responsible as the grantee, they cannot be dismissed. She said she didn't know what the 501c3 meant but the Opa-locka Weed & Seed wants to be autonomous, but they cannot be autonomous from the grantee because the grantee is held responsible.

She went on to ask, is the 501c3 getting ready to dismiss the City of Opa-locka as the grantee?

Mrs. Warren clarified that the city serves as the Opa-locka Weed & Seed fiduciary and the Steering Committee serves as the governing body for the Weed & Seed and as far as requesting funds, they have not requested any funds; they're trying to give funds back to the community. The Opa-locka Weed & Seed do not currently have a 501c3 and they have not submitted an application for a 501c3. The only thing that they currently have at this point is the articles of incorporation. As far as representation regarding the meetings from this day forward, she could provide the meeting minutes; however, there is city

representation at the Steering Committee each month that receives the report and information from the other subcommittee.

Mayor Taylor asked, who are the city representatives that attend the Steering Committee meetings?

Mrs. Warren stated that there is the fiduciary representation which is from the Finance Department, representation from the Parks & Recreation Department, and the Opa-locka Police Department. From this day forward, she said she could send the packet directly to the Commission, if that would be their preference.

Mayor Taylor asked, is the prime directive of the 501c3 and the autonomous thing to break away from the people who brought the money?

Mrs. Warren explained that the point of the 501c3 is to leverage additional resources to actually sustain the work that has already been done and they are not trying to leave any of their partners. The City of Opa-locka has been a strong partner serving as the fiduciary. As a matter of fact, they are about building additional partners; it's just not the City of Opa-locka.

Mayor Taylor stated to the City Manager that if the city is going to be in it then they need to know about it.

Vice Mayor Johnson pointed out that the Opa-locka Weed & Seed has not applied for the 501c3, but they have their articles of incorporation and that is what she is talking about. Secondly, it was stated that the Weed & Seed has not requested any funds, but that agency receives in-kind services from the city. She said that she has never received any reports from the Opa-locka Weed & Seed in the 11 years she's served on the Commission.

Mrs. Warren made a commitment to provide reports to the Commission.

14a. CITIZENS' FORUM:

1. Eldridge Redmon of 2766 NW 131st Street, Opa-locka, Florida, came forward and expressed his concerns relating to the contamination at Villa Francine.

Commissioner Holmes asked Mr. Redmon whether he reported the contamination to the City Manager.

Mr. Redmon replied, no.

Commissioner Holmes informed Mr. Redmon that the first step is to report the concern to the City Manager and then he would bring it to the Commission for action, if necessary. He informed Mr. Redmon that this matter would be passed to the City Manager to address.

2. Linder Parker of 955 Arabia Avenue, Opa-locka, Florida, appeared before the City Commission and commended the Opa-locka Police Department and employees who contributed to the success of the Mayor's State of the City Address. She voiced her concerns relating to the condition of the street between Jann Avenue and Sultan Avenue on Bahman Avenue, the payout of lawsuits to employees who have been terminated, and the rebuilt pump station.

3. Regina Miller of 14235 NW 22 Place, Opa-locka, Florida, came forward and suggested that the Commission as leaders be role models to the community.

Chief Cheryl Cason of the Opa-locka Police Department joined by Assistant Chief Antonio Sanchez commended Captain Sharon Gallimore, leader of the General Investigation Unit Department for a job well done. Deputy Chief Sanchez made mention of the LEO award recipient and briefly spoke about the great job Captain Gallimore is doing.

Captain Sharon Gallimore introduced the General Investigation Unit as follows: Corporal Jeffrey Faulkner, Detective Jean Francois, Detective Ludwin Vielman, Detective Antonio Dumourney, Crime Scene Investigator Arnold Ingram, and Detective Henry Payoute (LEO Award recipient).

15. ACTION ITEMS (items from consent agenda pull list):

1. (19-1) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH UNITED STATES ASSOCIATION OF CDC INC. FOR COMPLETE RECONSTRUCTION OF PUMP STATION 5 IN AN AMOUNT NOT TO EXCEED FOUR HUNDRED FIFTY THOUSAND DOLLARS ($450,000.00), PAYABLE FROM ACCOUNT NUMBER 35-535630; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above resolution.

Vice Mayor Johnson stated that on July 29, 2011 there was an accident which damaged pump station 5 and she is sure the City Attorney is looking for the recovery of the damages. The correspondence provided does not emphasize what occurred.

Manager Finnie explained that he is recommending establishing a partnership with the developer of the building adjacent to the site; in order for the developer to accelerate the development of his building, he has agreed to pay for the complete refurbishment of pump station 5 of which the city would reimburse upon DERM approval and the receipt of Certificate to Operate. He will be working simultaneously with the City Attorney to collect all the appropriate insurance proceeds.

Vice Mayor Johnson indicated that the correspondence does not include anything about the city reimbursing the developer; therefore, she requested that the resolution be amended to reflect the reimbursement.

Attorney Geller made reference to the fifth whereas in the resolution which read: "the city will pay 50% of the total cost to USA of CDC in FY 2012 and the balance will be paid in FY 2013". He stated that the resolution could be amended if it is not clear.

If the resolution is amended, Vice Mayor Johnson requested that it include the account number for the second part of it.

Manager Finnie said that the funding for this project is coming out of the Enterprise Fund.

Since the resolution doesn't state what the City Manager just indicated, Vice Mayor Johnson suggested that language be included to reflect the account number and the Enterprise Fund.

Commissioner Holmes stated that pump stations was on his list of charges against the City Manager and the City Manager comes up with this stuff to try to throw the Commission off. He indicated that this was not personal, but about the welfare of the city due to the current condition of the pump stations.

Attorney Geller proposed an amendment to the fifth whereas of the resolution as follows:

Whereas, the estimated cost of the complete reconstruction of Pump Station 5 is $450,000; the City presently has a grant for $242,500 for the reconstruction. The City will pay 50% of the total cost to USA of CDC in FY 2012 from Account No. 35-535630, and the balance will be paid in FY 2013 from the Enterprise Fund; and

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to amend the resolution to include the language as provided by the City Attorney.

There being no discussion, the motion on the amendment passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

There being no further discussion, the resolution passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

2. (19-2) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO MAKE PAYMENT TO SUNGARD PUBLIC SECTOR FOR THE ANNUAL SOFTWARE (PLUS SERIES SOFTWARE) MAINTENANCE, IN THE AMOUNT OF TWENTY SEVEN THOUSAND TWO HUNDRED FORTY ONE DOLLARS AND FORTY ONE CENTS ($27,241.41), PAYABLE FROM ACCOUNTS 14-512528 AND 61-513528; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Vice Mayor Johnson asked for the account names for each of the account numbers reflected in the resolution.

Faye Douglas, Budget Administrator for the City of Opa-locka came forward and stated that the title for both accounts is software licensing; the divisions are different (Water & Sewer fund and General Fund).

Vice Mayor Johnson assumed that when staff provides the amendment, it will reflect a reduction in those line items. She asked that the amount coming out of each account be provided to the City Commission on the following day.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

3. (19-3) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO MAKE PAYMENT OF THIRTY SEVEN THOUSAND EIGHT HUNDRED TWENTY-TWO DOLLARS ($37,822.00) TO SUNGARD PUBLIC SECTOR FOR THE ANNUAL SOFTWARE (OSSI POLICE SOFTWARE) MAINTENANCE, PAYABLE FROM ACCOUNT NUMBER 36-521646; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Vice Mayor Johnson asked for clarification as it relates to the account number.

Ms. Douglas stated that the account number in the above resolution is for computer equipment in the police department's budget. This software is for the records management position in the police department.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Johnson	Yes
Commissioner Holmes	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

Vice Mayor Johnson stated that she asked the City Manager to provide documentation of what was paid previously to this company. That information should have been included in the package as supporting documentation.

4. (19-4) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE SETTLEMENT FOR WILLIE SMALLS IN THE MATTER OF SMALLS VS. CITY OF OPA-LOCKA, CASE NO. 11-23062 CA 09, IN THE TOTAL AMOUNT OF $57,000.00, PAYABLE FROM ACCOUNT NO. 28-514390; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to pass the above resolution.

Of concern to Commissioner Holmes was that this case should have been settled in 2009 when the Civil Service Board made their ruling.

Vice Mayor Johnson expressed the importance of having documentation in place because many of these cases are not well documented. It is unfortunate that all of the employees are using the same general counsel which is championed by other sources. She asked, how long has this case been out?

Attorney Geller said that the suit was filed a couple of months and this particular case has not been finally decided. The Personnel Board matter goes back a lot further, but it never went to the lawsuit until just a few months ago and it is still pending in court.

Vice Mayor Johnson asked, how long ago was this individual terminated?

Attorney Geller said he believed it was in 2009.

Vice Mayor Johnson asked, where is the City Attorney's due diligence as legal sufficiency because he is bringing legislation to the Commission that hasn't even went to court to pay $57,000.00.

Attorney Geller explained that the plaintiff chose to file the litigation and the defense has been handled up until this point by the League of Cities at no expense to the city, but they are not paying the settlement which is paid by the city. He has consulted with the League of Cities Counsel and although there have been some court proceedings, it has not gone to final judgment and they recommended that the matter be settled. The amount the plaintiff was seeking was $76,000.00 in back wages plus attorney fees, but they were able to negotiate and bring that amount down to $57,000.00 inclusive of attorney fees.

Vice Mayor Johnson expressed her concerns relating to the operation of the Civil Service Board.

Commissioner Holmes suggested that if anyone had a concern about any wrongdoing by a member of any board that they follow the process to remove that particular member(s).

Vice Mayor Johnson said she brought correspondence to the Commission and if the allegations are true then it is a shame, but she will not support this resolution because the process was not handled right.

Attorney Geller provided clarification on this matter at the request of Commissioner Miller.

Commissioner Holmes added that if the Commission doesn't approve this resolution and it continues to go through the process, the city will end up paying twice the amount.

Because there were certain questions she needed to ask that are not suitable for the public, Commissioner Tydus requested an executive session to deal with this matter.

Attorney Geller said that an executive session could certainly be held on this matter if that is the pleasure of the Commission.

Mayor Taylor recalled asking the City Manager, City Attorney and Mr. Riley what matters were in litigation and could those matters be settled then. Her concern was that the city waits until these matters go to the courts to come back to the Commission rather than having an executive session for direction. She said she would like for these matters to be discussed with the Commission for direction in an effort to settle these cases early on. She asked for direction from the Commission as to how they wanted to proceed with this resolution and the following two.

Although there wasn't a final ruling on the above matter, Commissioner Holmes stated that item no. 5 is a PBA arbitration settlement and item no. 6 is a court order.

Vice Mayor Johnson stated that agenda items 4, 5, and 6 are different and there is nothing the Commission can do about items 5 and 6 at this point.

Attorney Geller explained that item 6 had gone to final judgment and there is an order, but the Commission can still have an executive session.

Vice Mayor Johnson asked, was an amount provided for item 6?

Attorney Geller said that it indicates with back wages until the date of termination; there is a pending motion for attorney fees, but the city was able to negotiate a price slightly less than the full back wages which included attorney fees. The motion for attorney fees would not be moving forward if the settlement is accepted.

Vice Mayor Johnson assumed that staff went back and did the math in terms of the numbers.

Manager Finnie said he coordinated with the City Attorney and that is how they came up with the figure.

Vice Mayor Johnson said that item 6 is a court ruling and item 5 involves a small amount of money, but she would like staff to put on record where the money would come from for item 5.

Manager Finnie advised that the number would come out of the payroll budget of the police department.

Because items 4, 5, and 6 were different, Vice Mayor Johnson said that the only item she can see the Commission going into an executive session to negotiate an amount is item 4; items 5 and 6 are a done deal.

Since the amount in the resolution has already been negotiated, Mayor Taylor asked, would the city run a risk of the number getting higher?

Attorney Geller said that it was a possibility. The individual understands that it is subject to approval of this Commission.

It was moved by Commissioner Tydus, seconded by Vice Mayor Johnson to defer the above resolution pending the holding of an executive session.

Vice Mayor Johnson stated to the City Attorney that what just happened should have not happened. As the parliamentarian, the City Attorney is to guide the Commission in the right direction.

Attorney Geller advised that a motion to defer is a subsidiary motion and it can be directed at a main motion; therefore, the action taken was proper.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	No
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

Commissioner Tydus suggested that the executive session be scheduled at that time.

Attorney Geller advised that he would have to check the League of Cities attorney's schedule because he would have to be in on the executive session.

Mayor Taylor directed the City Attorney to provide the City Clerk with the date for the executive session to forward to the Commission.

5. (19-5) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE ATTACHED SETTLEMENT AGREEMENT OF THE ARBITRATION PROCEEDING WITH THE PBA/ROBERT BELLS, PAYABLE FROM ACCOUNT NUMBER 28-514390; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to approve the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

6. (19-6) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE SETTLEMENT FOR DION MCGLOUN IN THE MATTER OF MCGLOUN VS. CITY OF OPA-LOCKA, CASE NO. 11-21855 CA 04, IN THE TOTAL AMOUNT OF $52,000.00, PAYABLE FROM ACCOUNT NUMBER 28-514390; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above resolution.

Commissioner Holmes stated that the above matter is court ordered and if it would have been settled back in 2009, the city would have probably got out of this having to pay less. The above matter is one of the items the list of charges provided to the City Manager that wasn't getting done.

Vice Mayor Johnson said that when this particular came up, it was stated that the individual only wanted their job back and there was no monies mentioned. At that time, the Commission provided a directive to find out and if she can recall correctly, that was

attempted. This information must be put on record because what she just heard was the opposite.

Attorney Geller stated that a written offer was made to Mr. McGloun, he was brought in for a meeting with him and then City Manager Mr. Patterson at which time he was offered the opportunity to return to work. Subsequently, the city received communication from his attorney rejecting that offer.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

7. (19-7) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO INVESTIGATE ALTERNATIVE SPACE FOR CITY OFFICES TO THE CURRENT LOCATION AT TOWN CENTER PROPERTIES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by M.T.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to pass the above resolution.

Vice Mayor Johnson asked whether the City Manager had the opportunity to search for documentation from previous administration which provided multiple alternatives proposed for the relocation of city offices from Town Center.

Manager Finnie said he will continue to look for those files which would help staff address this resolution.

Vice Mayor Johnson suggested that the City Manager check with the City Clerk because she can recall four of five proposals given to the Commission. Although she would support this resolution, she would like to see if that documentation could be located.

Commissioner Tydus recalled that the report was provided to the Commission, but the result of that report, the Commission decided that the city continue in pursuit of Town Center One. The City Manager did provide a memorandum dated January 31 of two relocation alternatives of which were included in the report Mrs. Beverly presented to the Commission. One of the alternatives mentioned in that report was the acquisition and renovation of the building across from Historic City Hall. Although this was one of the charges against the City Manager, the City Manager has responded to that as well.

Mayor Taylor suggested that the Commission along with staff look for the report and if found, provide it to the City Manager.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

For clarification purpose, Vice Mayor Johnson stated that once the report is found, it will be brought back to the Commission to make a decision.

Mayor Taylor replied, yes.

8. (19-8) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CALLING FOR A STRATEGIC PLANNING SESSION TO BE CONDUCTED BY THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by M.T.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Vice Mayor Johnson said she was glad to see this item come forth.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

9. (19-9) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO LOCATE/IDENTIFY MISSING MANHOLE COVERS THROUGHOUT THE CITY OF OPA-LOCKA AND PROVIDE A COST ESTIMATE FOR THE REPLACEMENT OF EACH MANHOLE COVER, AND FURTHER DIRECTING THE CITY MANAGER TO IDENTIFY FUNDS FOR THE REPLACEMENT OF SAID COVERS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above resolution was read by title by Attorney Geller. It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Holmes indicated that he received complaints about the missing manhole covers and he was told that the manhole covers are not being replaced due to the high cost.

Commissioner Tydus recalled receiving correspondence from the City Manager's Office concerning this matter indicated that the city has switched over to a different type of covers.

Commissioner Holmes said it didn't matter how much it cost to repair these manhole covers because that is the city's duty to keep everyone from harm's way to prevent liability. Also, he wants to make sure when the manhole covers are replaced that they are secured. The Commission needs to pass legislation to have the police department and code enforcement department check the metal recycling facilities and junk yards for the mission manhole covers and to inform the business owners that it is illegal to purchase stolen property. If it is found out that these business owners are purchasing stolen property, then the city should shut them down. He directed the City Attorney to bring back legislation at the next meeting for this purpose.

Vice Mayor Johnson asked, based on the memorandum provided by the City Manager, are the manhole covers being replaced?

Manager Finnie advised that he provided a list of what was missing and just ordered the extra drain covers. The city is working closely with the police department and they have a form with all manhole covers and will be conducting weekly site visits to ensure the manhole covers remain in place.

Vice Mayor Johnson suggested that this resolution is deferred and brought back to address the issue in terms of the police department doing their checks because this issue is being addressed.

Commissioner Holmes said he didn't have a problem with deferring this resolution, but he sent the City Manager a memorandum concerning the missing manhole covers prior to this resolution. He brought this matter to the City Manager's attention and this is something that should have been taken care of when the employees brought it up. He clearly stated that he wants the missing manhole covers replaced expeditiously due to safety issues.

He continued by saying that he would defer this item with the understanding that the manhole covers are being replaced.

Mayor Taylor asked, does the city have the money to replace the manhole covers?

Manager Finnie stated that the city has the money and when he found out there was an issue, there was no discussion of cost; he just provided a directive to get the manhole covers.

The motion and seconded were withdrawn. The above resolution was deferred.

10. (19-10) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO REMOVE BRYAN K. FINNIE AS THE CITY MANAGER, FOR THE REASONS SET FORTH HEREIN; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

11. (19-11) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO REMOVE WITHOUT CAUSE, DEBORAH S. IRBY AS CITY CLERK FOR THE CITY OF OPA-LOCKA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Tydus to pass the above resolution.

Note: This portion of the minutes is transcribed in verbatim format.

Commissioner Tydus: I need for the record, Mr. Attorney, I noticed that the ordinance for second reading rescinding the original ordinance that authorized the employment agreement between the city and the City Clerk is not on the agenda. How does that affect our considering this resolution tonight?

Attorney Geller: The employment agreement provides by its own terms that the City Commission may terminate the City Clerk according to the terms of the agreement. There is a severance that has to be paid if the Commission chooses to terminate the Clerk. There's a provision for with cause and a provision for without cause. The resolution before you calls for a termination without cause which entitles the City Clerk to receive nine months of salary and benefits as well as any accrued sick, vacation and comp time that she has. In my opinion, and I said this last time, that is a valid contract, the Commission has the right to act under it to effectuate the termination provided that they do so in accordance with the contract, specify which provision they are proceeding under, in this case without cause and then accept the obligation to pay the severance that's called for. As Mr. Gilbert points out, I may not have answered sufficiently, in my opinion, you do not need to have second reading of the ordinance in order to pass the resolution.

Vice Mayor Johnson: According to the employment agreement, Section 3- Termination, it states, in the event an employee is terminated by the Commission without cause then in this event the city agrees to pay the employee a lump sum cash payment equaling nine months of salary plus everything else. I'm assuming that we know that because should this happen I think we would be back like we are with the other three that's in the packet so I don't want anybody to get it twisted in this easy reading. That's A, let me go down to B, the city should pay the employee a lump sum cash equaling in two payments. So one of you all can do the math; either the Finance person can do the math, or the City Manager can do the math, or the Attorney, but all the benefits, it is spelled out in this termination. Now should we come without cause, since it is an ordinance, it is a public hearing, is that correct? To the Manager because the resolution, so let me just stick

without cause because I'm not going to make no suggestions. So without cause is covered in Section 3 of this agreement which was executed March 6, 2006.

Attorney Geller: Yes ma'am, Section 3(a) is without cause.

Vice Mayor Johnson: Oh no, I'm going 3(a) and 3(b) boo.

Attorney Geller: 3(a) is without cause and 3(b) is with cause.

Vice Mayor Johnson: Okay no, 3(a) is without cause, 3(b) tells you what the lump sum should equal to. 3(b) tells you if it's terminated or request to resign. At least that's what mine says, I don't know.

Attorney Geller: 3(b) is if you're terminated with cause or the equivalent of it; 3(a) is for termination without cause which is what's on the agenda before you.

Vice Mayor Johnson: Okay, so it's nine months of pay and all the other stuff that add up to it.

Attorney Geller: Yes ma'am.

Vice Mayor Johnson: Section 5 would break down the salary so that would give you a general idea. And I just think if a person has worked for us for 18 years, due diligence need to be done. I'm not going to sit here and support. I'll just awe all the way until twelve o'clock, but I'm not just going to sit here and not do right and expect for us to get blessings like all of us holy ones up here said, bless the five star city. So with that in mind, I don't support without cause at all because I think if somebody does something wrong, first of all they need to be documented, there is a process. Mr. Geller, I asked you last time to bring some information about the Fair Labor Standard Act. Although the State of Florida is a at-will state, but this at-will employee has an employment agreement and I hope what has been alleged is not true so I'm not even going to put that on the record, but I'm concerned with the process. Thank you very much Madam Mayor. I would like to have, should further discussion come, to really share my views per the contract, not the contract, the employment agreement. Thank you.

Commissioner Miller: My colleagues, one of our colleagues just sat up here and said we paying too much and these lawsuits coming out of our budget. We pay the City Clerk because you firing her for no cause, I've never heard anybody getting fired for no cause. Fire me for something I did, just because you don't like me, don't fire me. This is a citizen that's been in this city all her life. All of you all on this dais moved in this city. She's been in this city all her life; her family, her family helped to move the struggle that the black folks in Opa-locka had to deal with. So now just because we mad, somebody mad, we got to fire the City Clerk for no cause. I think that's ridiculous, I think that's ignorant, I think that's sad, just sad. I'm not going to support this because I am not going to fire homegrown. Now if you don't like what is going on, don't run for the election no more and go home and go move back where you come from. But I'm not supporting this and I think this is ridiculous. Thank you Madam Mayor.

Commissioner Holmes: If I may, Section 16 of the City Charter says that the City Clerk shall be appointed and removed by the City Commission. Madam Mayor, I think it's 1995, I was one of the persons who hired the City Clerk in 1995 along with, if I'm not mistaken, Commissioner Barrett and Commissioner Lipkins, we hired her. Madam Mayor, I've been being in City Hall practically every day, the people call me the full time commissioner because I be there every day. Madam Mayor, I, you know, I just want to, I was hoping she would take 16-2 tonight and go ahead and retire. Her agreement says we can fire her with cause or we can fire her without cause with the plus we have to pay her. Madam Mayor, some of the things that done went on that I am aware of, I'm willing to fire her tonight without cause. Now, if I wanted to I could go back over the years that I've been here, but there's a statute of limitations probably work out on some of that stuff, go out on some of it, and bring back a whole list of charges. But no, I tried to give Mrs. Irby the benefit of the doubt. If she stay or don't stay, if she stay, I don't have any more respect for her, I do not have any more respect for her just as I don't have any respect for the City Manager. People let me say this, its some things that are going on that you are not aware of that they are involved in and you would be shocked to hear some of that stuff, but I'm not at liberty to get into that stuff and I don't want to try to belittle anyone. That's the reason I'm willing to support the resolution tonight to fire the City Clerk without cause and pay her the nine months we have to pay her. I'm going to leave it at that. I am sad, I hired her when her mother and father were living, I had to talk them about things according to her. Well anyway, I'm not going to go back and hash out all of that. You say homegrown being in this city, I've moved in this city in 1981. I was appointed by Bob Knapp on the Code Enforcement Board in 82 or 83, one of those years and when I got on the board, it was already two or three blacks on the board. But when I got on that board, it was one black person up there was making a motion to put any liens or fines on anybody black or white that comes in front of that board until got on there and start doing it. And when I came out with the first motion to fine somebody, the other people on the board looked at me like they was crazy. I do not do things because of the color of the person's skin, I stated that when I helped hire Mr. Finnie. I got a lot of whipping when I hired him and said that, now I'm going to get back on the City Clerk, I just want to put this out, why did you hire the other person with Mr. Finnie, he's not black. I told my citizens of this community, I do not hire a person because of the color of their skin, I hire a person if they are capable of doing the job that we need them to do in this city. Now how much more fair that you can be than that? You know I came up, I was born in the 40's, I came up when my father couldn't look the white man in the face, when he was spit on. Yes sir, no sir boss, yes captain. On the 17th of this month I would be sixty-nine years old, people say I don't look it so I'm thankful for that, but I've been around a lot time. I know what this world is all about. Now to get back on the City Clerk, I could have brought some charges starting from last year. The people call her our sixth commissioner because the word is that she has three commissioners that she can get things done when she want to get things done for the people that comes to her office. But no, I don't want to try to get into all that because my thing is to go ahead and remove her without cause and let her walk out as a lady and hold her head up.

Vice Mayor Johnson: I'm looking at the judgment that came on one of the previous one where we just paid out a lump sum of money and it states that the dismissal with prejudice with the responsible party bearing its own cost. Now in a conversation with the Clerk last year as well as, probably as late as yesterday, she plans to retire anyway. So if

we're talking about dignity and respect, you let a person go out with dignity and respect and not throw a bone and then pull it back. Because I think if anybody, and I tell my employees and myself first of all, if there is something, there is always four types of people. There are people who add, subtract, divide, and multiply your life and its easy that if you avoid not saying something years ago and to bring it up now, that's not right in my opinion. I'm not going to hold something over you because you know what, I've seen days that I would have thought this would have never of come. But if this is the conclusion we want to look at, I think she's already stated and I would like to just get clarification from Mrs. Irby so if I'm having a senior moment, I can ask you publicly to forgive me and personally myself to forgive me. But Mrs. Irby, are your plans to retire soon? Do you have any plans to retire?

Clerk Irby: Yes I do.

Vice Mayor Johnson: Okay, do you have a date specific in which you desire to retire and notify this Commission? And this is unrehearsed so I'm going to make sure you all know it. This is unrehearsed; my unrehearsed so Webster may not define it or anyone here define it for me means she didn't know I was going to ask her this, okay. Mrs. Irby?

Clerk Irby: No, I do not have a date specific.

Vice Mayor Johnson: But do you plan to retire in the year or do you plan to retire next year.

Clerk Irby: I was planning...I really don't know.

Vice Mayor Johnson: You really don't know?

Clerk Irby: No.

Vice Mayor Johnson: Okay, so I know she stated that she plan to retire, she's not date specific, there's no cost. The resolution that's in front of us is without cause. I can't really support something without cause and if you decide without cause, I want to make sure the Commission knows we're going to pay nine months of salary and all of her benefits that goes with it and then I know, I don't know, I hear a little birdie.

Mayor Taylor: That's okay, she's going to get herself under control.

Vice Mayor Johnson: Okay, but I know what I want to happen to me and my children children, I try very hard to make sure I'm doing the right thing to make sure and I think everybody need a cool off period and I think none of the ones, I don't see but one, a few employee here in the city that work for the city that if I was running a fortune 500 company I would hire. So ain't nobody here today is living up to 100% of my expectations. Now does that say that I give them the tools to get the job done; absolutely! I'm supposed to as a boss. Give you the tools because you have potential and to get the job done, but to say I'm not going to slaughter you in the public and then I throw my innuendos out, I think that's absolutely, first of all, unprofessional, should not be tolerated in today's society and then gang up because I hope that what I heard is not true.

More than one or two have decided this already. I would not be a part. No, Mrs. Irby have not nor have the Manager, nor have the Attorney lived up to 100% of my expectation. And when ever I have the opportunity, not just now, I have those conversation and the majority of whatever I have bought here to this Commission, I can take oath to say I have discussed it with either the attorney or the manager so it's nothing new, it's just that I have a job to do and I have a responsibility to do. So I know most times you all say I talk too much, if I talk to much you can go home but when election time let the people know I only want to be here for two minutes, get the business done and go home. But I think what we are doing and what is being proposed, I don't think...if you want to do it, do it in the right manner. Document what the person did, discuss it with them and give them the tools to get the job done. But for 18 years and say you know what, hit the door. It is wrong, it's shameful. I'm not going to the restroom although I need to, I'm going to stay here to the call.

Commissioner Holmes: You know I'm listening to my colleagues up here chastising us in a way and talking about they are not going to belittle no one, and I'm not going to call any names up but what you all think you all doing to Mr. Patterson when the gentleman was our City Manager. What you all think you all did to Mr. Patterson and his family when he was here. And I'm going to stop it right there Madam Mayor because I don't want to get any deeper in it. So don't say you don't want to belittle somebody and that's your name, that's the name of your game. You got to think back and remember what you have said in the past because now you trying to fight to keep somebody job here knowing that he's not doing the job, he's suppose to be doing and knowing that the morale...now maybe you don't know. Madam Mayor, do I still have the floor?

Mayor Taylor: Yes sir, you have the floor.

Commissioner Holmes: Maybe you don't know but I be there everyday, maybe you don't know that the morale of the employees, or the majority of the employees is so bad under Mr. Finnie administration. Maybe you don't know, but I know because I'm there everyday. Like I said, I'm not at liberty to get into some things and I'm not going to get into some things up here because I'm not going to put it out like that because that's not the type of man I am. But I want you to have an idea of what's been going on in this city and let you know that Commissioner Holmes don't take it personal, but I take it for the welfare and betterment of this community.

Vice Mayor Johnson: For the record, although no names was called, I'm going to make the assumption that even when Mr. Patterson was here, the same conversation I've had with Mrs. Beverly and it's only been three in my eleven years, Mr. Finnie as well as Mr. Patterson, I've had them, the same conversations. Unfortunately, when I have my conversations I don't go back to the fourth floor to get scatter that matter, it's personal, its' between me and the employee. So many times when I have conversations and I see people doing something, it's not to belittle them, it's just for them to get it corrected. Even if I see an employee doing wrong, you know what I tell them, it's between you and I and from that point on, I don't discuss it with nobody and my closet friend in this room is my husband. Mostly anything I do my husband know, but I don't operate like that. If I think that I'm chastised, I'm not chastising, I'm just telling the truth. I'm just telling how I feel. So all that went in the paper, that's a lie. I sent you all correspondence to address

it. Now what you believe is one thing and I don't have to prove a point to nobody up here. I got to prove a point to God and myself, but I don't tell everybody everything and I don't wait until I get mad to tell them all. So I'm just…I don't know if this is going to be my last comment Madam Mayor and I just don't appreciate the conversation where it's driven because I've seen this and I am so disappointed what I'm feeling. Thank you.

Mayor Taylor: Let's get back to the business at hand. Commissioner Tydus did you have a comment?

Commissioner Tydus: No comment.

Mayor Taylor: Commissioner Miller?

Commissioner Miller: No more comment.

Mayor Taylor: Alright, the removal without cause is a part of the contract. Mr. Geller, is that correct?

Attorney Geller: Yes ma'am.

Mayor Taylor: And which would give the City Clerk a full packet. Is that correct? Is that how it was?

Attorney Geller: Yes ma'am.

Mayor Taylor: Alright, if no more discussion, let's get roll call.

Clerk Irby: Vice Mayor Johnson?

Vice Mayor Johnson: No.

Clerk Irby: Commissioner Tydus?

Commissioner Tydus: Yes.

Clerk Irby: Commissioner Miller?

Commissioner Miller: No.

Clerk Irby: Commissioner Holmes?

Commissioner Holmes: Yes.

Clerk Irby: Mayor Taylor?

Mayor Taylor: Yes.

Clerk Irby: Motion passes 3-2.

Commissioner Holmes: On passing of the resolution on her, I suggest that we have someone from the police department to go up with her tonight…

Mayor Taylor: No.

Commissioner Holmes: Hold on, you don't know what's been going on this week.

Commissioner Miller: Ain't no police department (inaudible). They need to take you somewhere.

Commissioner Holmes: Do I have the floor Madam Mayor or not?

Mayor Taylor: Yes sir, you have the floor.

Commissioner Holmes: Madam Mayor, there have been boxes of stuff taken out of that office this week. So I'm suggesting, you don't have to do it, that the police walk her up there, let her get her personal items out, what she wants to get out of there tonight and accept the keys from her so she can walk out the door.

Mayor Taylor: I'm not going to agree with that.

Commissioner Miller: To the attorney, y'all got enough money to pay her because she doesn't want a partial payment, she wants all of her money. Now if y'all got enough money to pay her, pay her tonight because y'all ain't going to have enough money to pay her, the city is going to go in default and the governor going to come take over this city. A lot of folks don't know what's going on. I'm going to tell y'all.

Commissioner Holmes: We did it back in 2000 when somebody else was Mayor…

Commissioner Miller: You doggone right and a good thing he did because people like you.

Commissioner Holmes: …and it was your brother.

Commissioner Miller: People like you are going to destroy this city.

Mayor Taylor: C'mon, stop, stop, stop, stop, stop, please. C'mon now, stop.

Commissioner Miller: He better not go there, he better not go there.

Commissioner Holmes: I'm not going to take it personal.

Mayor Taylor: Do you all see me sitting here.

Commissioner Miller: Yea, I see you, but (inaudible) is still a crook.

Mayor Taylor: C'mon get under control.

Commissioner Miller: Well just go to the next one so I can vote (inaudible).

Mayor Taylor: I'm not going for that. Here's what we're going to do. This lady has served this city well, she served this city well and we're not going to do, Commissioner Holmes, let us reconsider that police thing. She will walk out with dignity and she will walk out with respect. She served it well, she served it, the vote has been taken, but we're going to give her the opportunity to walk out with dignity. Just let it go. Commissioner, we're not going to...

Commissioner Holmes: It's gone.

Mayor Taylor: Alright, it's gone.

Vice Mayor Johnson: Umm, I like for the attorney to bring back a resolution because the charter and I know that you all need to consult with some other individuals, but I know the Charter says that we have to search for a City Clerk. So I would like for that to be immediately.

Commissioner Miller: They already got it planned.

Vice Mayor Johnson: I know they got some plan and I don't the chair or nobody and the echo because if...we're not talking again, if someone outburst like that, I don't care who connection they got, they need to be escorted. Madam Mayor, I am not going to sit here no more to have to be disrespected by citizens, okay.

Mayor Taylor: That is fine. Um, we will... we need now...uh...can we appoint an interim tonight?

Attorney Geller: Yes ma'am (inaudible).

Mayor Taylor: Anybody got any suggestions.

Vice Mayor Johnson: What was the plan?

Mayor Taylor: No, there is no plan, I just asked Mr. Geller...

Vice Mayor Johnson: Oh no, there is a plan.

Mayor Taylor: I just asked Mr. Geller can we appoint an interim tonight. Now let's stay on focus people.

Commissioner Holmes: Let me make a suggestion, if I'm not going above everybody to Mr. Geller. Mr. Geller, I support the resolution to send out for a search for another City Clerk, so prepare a resolution for the next commission meeting that we would send out for a search for a City Clerk. Now, Madam Mayor, we have Assistant City Clerk and we have a Deputy City Clerk. We can appoint either one of them as Acting or Interim until we have the search is over for a new City Clerk.

Mayor Taylor: What is the wish of the Commission?

Vice Mayor Johnson: I would like to make a motion to appoint Sha'mecca Lawson Johnson as the Interim City Clerk.

Commissioner Miller: Seconded.

Mayor Taylor: Moved by Vice Mayor Johnson to appoint Sha'mecca Lawson and the seconded by Commissioner Miller. Discussion – Yes sister Lawson is with child. She won't be here very long.

Vice Mayor Johnson: Madam Mayor, I would suggest that come off the record.

Mayor Taylor: What I am saying is…

Vice Mayor Johnson: Hold on a minute Madam Mayor, just for safe…

Mayor Taylor: Well since I was…

Vice Mayor Johnson: Okay, go ahead.

Mayor Taylor: What I was saying was…

Attorney Geller: Madam Mayor that comment should be withdrawn.

Mayor Taylor: I withdraw that comment, I withdraw that comment and we've just discussed that today, I am sorry I've made that mistake. My point was we wouldn't have a lot of time, that's all I was saying. Not necessarily her physical condition.

Commissioner Tydus: As far as Mrs. Lawson is concerned…

Mayor Taylor: Yes, that's the name on the floor.

Commissioner Tydus: My concern is that she's only been working half days, she goes home at 12:00 noon because of her condition. So she does not have the time that's needed to be here. She's working half days. Thank you.

Mayor Taylor: Alright as far as comments is concerned.

Attorney Geller: Let me just say, excuse me Commissioner but there are laws that talk about someone that is expecting or is pregnant. That is not an area where the Commission ought to be making a comment. I would also to reconsider to please withdraw the comment from the record.

Vice Mayor Johnson: I hope that all of those…

Commissioner Tydus: My comment was not directed towards her pregnancy, my comment was directed towards the hours that she coming to work, that she's working now.

Attorney Geller: I'm not suggesting differently and I'm not saying that the city has done, or any member of the Commission has done anything wrong, just in the abundance of caution, it would be best if the comment would be removed from the record. It is in the abundance of caution. I don't want to suggest that it was improper.

Commissioner Tydus: Well then I withdraw my statement.

Mayor Taylor: Thank you very much. Let's take a vote to name Mrs. Sha'mecca Lawson as the Interim City Clerk until at such time we sent out for...I know I'm not saying it right.

Attorney Geller: Mayor it's just until further action.

Vice Mayor Johnson: I made a motion and it was seconded. Are you still on discussion?

Mayor Taylor: Are we still on discussion? Vice Mayor Johnson.

Vice Mayor Johnson: What I would like to say, should that employee decide to, for whatever reason of not being in, then there is an Assistant Deputy Clerk, that in lieu of can automatically step in. So I caution prior on the verbiage which was avoided, but I just want to make sure that we know that the office will always be attended to, but the day to day operations as the Interim City Clerk, I'm suggesting Mrs. Sha'mecca because I've already spoken to the other one and they said they were not interested. So if you're not interested that tells me one thing and if Mrs. Lawson Johnson is not available at that time, the responsibility according to the charter would fall to the next person. So I just want to make sure for clarification that the office will always be attended to.

Commissioner Holmes: Who's the next person Madam Vice Mayor?

Commissioner Miller: You know who it is. You already done promised her.

Commissioner Holmes: I am getting so tired, I'm getting so tired of this...

Commissioner Miller: (inaudible).

Mayor Taylor: Excuse me, Commissioner Holmes has the floor. Go right ahead.

Vice Mayor Johnson: The next person in charge would be Joanna.

Commissioner Holmes: I just want you to put it on the record.

Mayor Taylor: Any other discussion on this item. Roll call please.

Clerk Irby: Commissioner Miller?

Commissioner Miller: Yes.

Clerk Irby: Commissioner Holmes?

Commissioner Holmes: Yes.

Vice Mayor Johnson: Yes.

Clerk Irby: Commissioner Tydus?

Commissioner Tydus: No.

Clerk Irby: Mayor Taylor?

Mayor Taylor: No.

Clerk Irby: Motion passed 3-2.

Vice Mayor Johnson: Since the motion has already passed and it is been confirmed, since it's suppose to be done in two payments, the amount and I need to put it on the record, the amount is $237,628.61. So I'm sure there's a budget item for the three that...no, it's a single lump payment.

Commissioner Holmes: Madam Mayor, that's not a discussion for right now.

Mayor Taylor: I know, Commissioner Holmes, let Vice Mayor Johnson finish.

Vice Mayor Johnson: Well then I'll make this a part of my report. No problem.

Mayor Taylor: Did we take the vote already?

Vice Mayor Johnson: Uh huh.

Manager Finnie: I just want to go on record that as a result of the resolution for Mrs. Irby, there will be a requirement of a lump sum payment.

Mayor Taylor: I think someone said that's not a discussion for right now.

Manager Finnie: I just made a statement, that's all.

Mayor Taylor: Okay, let's hold on that and we need really to get that from the Finance Director. That's where that should come from.

Commissioner Holmes: My, my, my.

Mayor Taylor: I want to acknowledge Councilwoman Felicia Robinson from the City of Miami Gardens. Thank you so much for coming. Thank you very much. Mr. Geller.

Attorney Geller: Item 12…

Commissioner Holmes: Can I change my vote on that.

Mayor Taylor: I don't know.

Commissioner Holmes: Can I change my vote Mr. Geller.

Attorney Geller: If you voted on the prevailing side of something, you can vote to reconsider.

Commissioner Holmes: Yes, I want to reconsider my vote.

Mayor Taylor: You're on the prevailing side.

Commissioner Holmes: Because I see the game being played, so I want to rescind my vote for Mrs. Sha'mecca Lawson.

Mayor Taylor: You want to rescind your vote and put it on the other side.

Vice Mayor Johnson: You can't…you can't.

Attorney Geller: The only thing you can do, if you voted on the prevailing side, you can make a motion to reconsider and then the Commission has to vote on it, and then if it passes, the matter would come back before the Commission.

Commissioner Holmes: I make a motion to reconsider, Madam Mayor, my vote.

Mayor Taylor: You want to make a motion to reconsider your vote.

Commissioner Holmes: Yes ma'am.

Mayor Taylor: I need a seconded on that.

Commissioner Tydus: I seconded.

Mayor Taylor: Seconded by Commissioner Tydus. Roll call on reconsidering your vote.

Commissioner Holmes: Right.

Vice Mayor Johnson: Just remember you need a 4/5.

Commissioner Holmes: No we don't.

Mayor Taylor: Wait now, it ain't but one lawyer. What you say sir.

Attorney Geller: I believe a motion to reconsider takes the majority of the vote.

Commissioner Holmes: There you go.

Attorney Geller: That's my understanding.

Mayor Taylor: Alright Madam Clerk, roll call.

Clerk Irby: Commissioner Holmes?

Commissioner Holmes: Yes.

Clerk Irby: Vice Mayor Johnson?

Vice Mayor Johnson: I don't know what we are voting on?

Mayor Taylor: He wants to reconsider his vote.

Vice Mayor Johnson: To mean what?

Mayor Taylor: To mean he wants to re-vote again.

Vice Mayor Johnson: No.

Clerk Irby: Commissioner Tydus?

Commissioner Tydus: Yes.

Clerk Irby: Commissioner Miller?

Commissioner Miller: Yes.

Clerk Irby: Mayor Taylor?

Mayor Taylor: I vote yes. He wants to reconsider his vote.

Commissioner Holmes: Now Madam Mayor, I would like to make my vote to go to Ms. Joanna Flores as the Interim City Clerk until we send out a search.

Attorney Geller: Excuse me for interrupting, sir. The reconsideration means that the previous vote is not for a revote. It's not anything else pending then what there was pending. There's a motion to appoint Mrs. Lawson, that's what pending. It's now pending again because it's being reconsidered, but you're still on that item on that motion.

Commissioner Holmes: Do we have to vote on that again?

Attorney Geller: You're in discussion on it. Discussion is automatic when you have a reconsideration following which that item would have to go to a vote.

Commissioner Holmes: What are we going to vote on?

Mayor Taylor: You will vote on Lawson.

Commissioner Holmes: Alright, I thought when we voted the first time to appoint her as the Interim City Clerk and it passed 3-2 then I said I wanted to reconsider my vote and I did and I thought when we had the vote and it came in favor of me reconsidering my vote, then we move to the next step, to the next person. If I'm wrong (inaudible).

Attorney Geller: The procedure is the motion to reconsider brings the last item passed that was reconsidered back for further consideration.

Commissioner Holmes: And what is that?

Attorney Geller: The item pending was a motion to appoint Mrs. Lawson. You can discuss it or you can take a vote on it.

Commissioner Holmes: Oh okay.

Attorney Geller: Madam Mayor, you have to take a vote on the item. The item is back in front of you as it was originally. You can move to a vote on the item if there is no further discuss and then you all vote. You all cast your votes on the pending motion, that's what a reconsideration is.

Mayor Taylor: We have a motion and a seconded on that motion.

Vice Mayor Johnson: You have a motion and a seconded?

Mayor Taylor: On the Lawson.

Vice Mayor Johnson: Okay, are you in the discussion?

Mayor Taylor: Wait, I'm trying to get clarity here and then the Chair will recognize Vice Mayor. Commissioner Holmes asked to reconsider his vote.

Attorney Geller: It's really a motion to reconsider the item.

Mayor Taylor: To reconsider the item?

Attorney Geller: Yes ma'am.

Mayor Taylor: So now we will start over with the item. Is that correct?

Attorney Geller: Yes ma'am.

Mayor Taylor: Alright, now do I need a new first and seconded?

Attorney Geller: No ma'am it's back in front of you.

Mayor Taylor: We have a motion, we have a seconded and we need to take a re-vote. Is that correct? On this motion.

Attorney Geller: Yes ma'am.

Vice Mayor Johnson: In talking to Ms. Joanna on Wednesday, she was not interested so that was one reason why I suggested the other way, but I'm sure between now there have been some dialogue, so we need to make sure, for clarity that her mind has not changed briefly. Since the Clerk is still currently the Clerk, through the City Clerk, I would like to ask for permission to speak to Joanna.

Mayor Taylor: Ms. Flores, get to the mic.

Assistant City Clerk Flores: Yes Vice Mayor, my comments to you on that was that, based on what was going on, I don't want to get into details on it…

Vice Mayor Johnson: You shouldn't.

Assistant City Clerk Flores: I just told you that I wasn't chasing after anybody's job, I wasn't going after anybody's job.

Vice Mayor Johnson: So you're interested?

Assistant City Clerk Flores: And then to address the comment that someone else said about this was already planned, nothing has been promised to me, just for the record. I'm not sure what else is going on up there, but nothing has been promised to me.

Vice Mayor Johnson: My question to you Mrs. Flores, are you interested? Would you be available in or interested in serving as the Interim City Clerk?

Assistant City Clerk Flores: Yes.

Mayor Taylor: Any other discussion. We're going for the vote with Joanna Flores name.

Attorney Geller: No ma'am that is not what is in front of you.

Mayor Taylor: You want to stay with Lawson?

Attorney Geller: It's not what I want. There is an item in front of you. It's been reconsidered, now it's pending.

Mayor Taylor: What's pending?

Attorney Geller: The original motion was to appoint Mrs. Lawson. It is been reconsidered, it is now pending in front of you.

Mayor Taylor: Alright, I need to vote on that, correct. Go ahead, baby. Just Lawson.

Clerk Irby: Vice Mayor Johnson?

Vice Mayor Johnson: Yes.

Clerk Irby: Commissioner Tydus?

Commissioner Tydus: No.

Clerk Irby: Commissioner Miller?

Commissioner Miller: Yes.

Clerk Irby: Commissioner Holmes?

Commissioner Holmes: No.

Clerk Irby: Mayor Taylor?

Mayor Taylor: No.

Attorney Geller: You may now accept a new motion.

Mayor Taylor: New motion.

Commissioner Tydus: Okay, I make the motion to appoint Joanna Flores as the Interim City Clerk pending the search for a permanent City Clerk.

Commissioner Holmes: I seconded it.

Mayor Taylor: Moved by Commissioner Tydus, seconded by Commissioner Holmes for Joanna Flores to be considered. Any discussion? Roll Call.

Clerk Irby: Commissioner Tydus?

Commissioner Tydus: Yes.

Clerk Irby: Commissioner Miller?

Commissioner Miller: No.

Clerk Irby: Commissioner Holmes?

Commissioner Holmes: Yes

Clerk Irby: Vice Mayor Johnson?

Vice Mayor Johnson: No.

Clerk Irby: Mayor Taylor?

Mayor Taylor: Yes.

Clerk Irby: Motion passes.

Note: This concludes the verbatim portion of these minutes.

12. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO REMOVE THE FIRM OF GREENSPOON MARDER, PA, AND JOSEPH S. GELLER AS CITY ATTORNEYS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by G.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Miller, seconded by Vice Mayor Johnson to pass the above resolution.

Vice Mayor Johnson asked, are we terminating with cause or without cause?

Commissioner Miller stated that the termination is with cause.

Vice Mayor Johnson asked if Commissioner Miller provided the firm with indicators into which we are terminating the services?

Commissioner Miller replied, no.

Vice Mayor Johnson said that in all fairness the firm deserves to have all of the alleged indicators as to what the Commission is not satisfied with in writing for them to be able to address it.

Commissioner Miller asked, was that done for the City Clerk?

Vice Mayor Johnson said because others do wrong doesn't make them do wrong. She suggested that the Commission do the right thing.

Commissioner Tydus said she was embarrassed and the city is the laughing stock of Dade County and the professional community. The Commission is irresponsible in the management of the appointed officials they are responsible for hiring and firing. To have on an agenda the termination of the three key executives or officials of this city is irresponsible. This puts the city in a very unstable position, makes them a laughing stock and it says they are the ones that are irresponsible. The Commission should be pointing the fingers at themselves because this is ridiculous and she is ashamed and embarrassed. At least the Commission could have timed it in such a manner. There are three terminations on the agenda with no back up plan.

Commissioner Holmes stated to Commissioner Tydus that the Commission could have done the same as was done for the City Clerk by placing someone in the City Manager's and/or City Attorney's position.

Vice Mayor Johnson suggested that the sponsor defer this resolution until further notice to be able to present the firm all of the indicators Commissioner Miller may not be pleased with to allow them to address it.

Commissioner Miller stated that she didn't trust the City Attorney anymore. She expressed her disappointment with the City Attorney. She deferred the above resolution.

Commissioner Holmes cautioned his colleagues as to how they address the appointed officials.

Commissioner Miller left the meeting.

Mayor Taylor reminded Commissioner Miller that this was a formal meeting and when she dismisses improperly, it says something about the Commission. It is improper for her to walk off the dais in that manner.

16. NEW ITEMS:

17. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

18. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION/PUBLIC HEARING:

19. ADMINISTRATION:

CONSENT AGENDA:

A. CITY MANAGER'S REPORT:

Manager Finnie announced that the Employee Recognition Luncheon would be held on February 14, 2012 and further information would be forthcoming.

He thanked Mayor Taylor and Commissioner Miller for a very engaging two days in Tallahassee during Miami-Dade Days which was productive. It is a very difficult period in terms of raising money through the legislature, but the city gave it shot.

He reported on the roof repairs at Historic City Hall, staff meetings with FDOT to explore ways to maintain SR9, pump station 10, and the manhole issue.

Note: This portion of the minutes is transcribed in verbatim format.

Manager Finnie: I've been informed by our counsel that pursuant, that I must inform you, that in light of the decision made on Deborah Irby's resolution, that according to the contract, I am mandated, and I need your authorization, to cut a lump sum check. I'm mandated to do that and I have to go on record to tell you that and get your authorization and I'm just following direction.

Vice Mayor Johnson: Although I may only have two years of law, I just cannot sit and not let you know because you guys agreed not to discuss this tonight, but since you have an employment agreement, you would bridge the contract and the amount will increase. And I would like to ask the attorney for legal sufficiency because I know I really live in this city and I really want to make sure that no more money goes out unnecessary. So, I know you all said you didn't want to discuss but I can't sit here and not say this. So Mr. Attorney, could you please help me to understand if it doesn't happen. Would not this agreement be bridged?

Attorney Geller: Vice Mayor you are correct. In my opinion, this is a valid binding contract. I've expressed that to you last meeting and I said it again. There is a contract, the contract says if there is a termination without cause which you have voted, then the clerk is due a lump sum of money and it's spelled out right in the contract. It's accrued, but unpaid, sick, vacation and comp time and in addition, its nine months of salary and benefits. The resolution passed. Frankly, I believe the city is obligated to pay the money period, but I understand the Manager's concern about paying the large sum without expressed direction from the City Commission even though it is the Commission that adopted the contract because of his discomfort and because it is arguable, it is probably best that the Commission expressly direct that the payment in accordance with the contract be made.

Vice Mayor Johnson: Okay, thank you for the clarification because I know when the Manager, what I received that when the Manager tried to explain, it was not to be discussed tonight. But this is something we can't leave without discussing tonight because we already have legislation saying about rectifying monies and his spending power is five thousand dollars. So tonight, the three of you, because I will be leaving after this, need to decide how you will be paying that money.

Note: This concludes the verbatim portion of these minutes.

Vice Mayor Johnson stated that she was called upon by Georgia Ayers for an initiative and she needs the City Manager to provide 8 x 10 photographs of former Mayor Helen

Miller and all of the female members of the Opa-locka Mayor/City Commission within a week.

She requested that the City Manager start discussions with the owners responsible for the Opa-locka Express more specifically the high rate of speed of vehicle # 826. She suggested that those vehicles have a stop sign like the school buses to avoid accidents.

She further stated that that community policing should be increased in the evening hours to target those areas where the youth are in the streets with dark garments.

Deputy Chief Antonio Sanchez stated he would be happy to go out there from a community policing and informational perspective to inform and try to address the safety issue, but he doesn't believe the city has a legal standing as to what color clothing anyone could wear in the safety.

Vice Mayor Johnson publicly apologized for parking her city vehicle on the street when she attended a function due to the unavailability of parking.

Note: This portion of the minutes is transcribed in verbatim format.

Attorney Geller: Madam Mayor, you should, perhaps before Vice Mayor leave, you should actually direct the Manager to pay whatever it is that is owed to Mrs. Irby under the contract. Give him the authority to do so.

Commissioner Holmes: We couldn't give the Manager an opportunity to find out what it would cost and call a special meeting? Is it possible that we can direct you and the City Manger to get together and find out how much it would cost and call for a special meeting. Would it be better that way, instead of trying to sit here tonight?

Mayor Taylor: At least let us know where it is coming from?

Attorney Geller: You can ask for a report. I mean you can do whatever it is that you chose, but the contract calls for the payment to be immediate.

Commissioner Holmes: I'm not going against that Mr. Geller. I said find out what it is and call for a special meeting within the next few days.

Attorney Geller: You don't have to...you can certainly do that Commissioner if you chose to do that, but the payment is due immediately. You don't have to authorize a dollar amount tonight. You can just authorize the City Manager to pay what is due under the contract. The calculation does not have to...

Commissioner Holmes: Well Mr. Geller that's self explanatory because it's in the agreement what he's paid.

Attorney Geller: Well I mean with the dollar amount.

Commissioner Holmes: That's the reason I said let them get together tomorrow and find out what it is. But it's self explanatory, it's in the agreement what she should get. But I'm willing to do what my colleagues want to do. I don't have a problem with it.

Vice Mayor Johnson: Through the Manager, Mr. Zeke.

Manager Finnie: Dr. Orji.

Vice Mayor Johnson: Because I know it was probably known that it would pass, was any number worked out prior to your knowledge, Mr. Zeke?

Dr. Orji: Yes, Vice Mayor. Good evening, Mayor, Commission, Zeke Orji, Finance Director.

Vice Mayor Johnson: Mr. Zeke would you be so honored to put whatever numbers that was previously worked out to avoid a special meeting because this has been discussed already with the speculation that this would happen.

Mayor Taylor: Is that a formal letter there? That's a formal memo?

Commissioner Holmes: I would like to see. I would like to see.

Vice Mayor Johnson: She got it too.

Mayor Taylor: She got nothing. No she don't. That's why I asked him was that a formal memo you was getting ready to give him.

Manager Finnie: No ma'am.

Mayor Taylor: When he said how much and you was handing him a memo.

Manager Finnie: It's not a formal memo; it's a document, but it's not a formal memo.

Mayor Taylor: But that document should be shared with the Commission.

Commissioner Holmes: With an amount on it.

Mayor Taylor: Is there an amount on that document?

Vice Mayor Johnson: Where did it…?

Manager Finnie: Dr. Orji is about to tell you.

Mayor Taylor: You have something written then that should be shared with the Commission.

Vice Mayor Johnson: Where was this generated? Mr. Attorney do you have a copy of this?

Commissioner Holmes: Madam Mayor, if I may. How could the City Manager foresee what we were going to do tonight up here and work out an agreement or settlement for this. My colleagues are saying that we are doing something wrong, but I didn't how the vote was going to go up here tonight. I know how my vote was going to vote. I know I was going to vote to do what I did, but I couldn't speak on behalf of my other colleagues. So I could they foresee what we was going to do up here tonight.

Vice Mayor Johnson: I could tell you what I heard.

Commissioner Holmes: Well, I don't want to go on hearsay, Madam Vice Mayor, because hearsay…

Vice Mayor Johnson: Well I'm going to speak when you finish.

Commissioner Holmes: Well go ahead, I'm through.

Mayor Taylor: Dr. Orji, we want to know, do you have a written document for the Commission to see what you are giving us because it's something being passed around. I don't have that.

Commissioner Holmes: I don't have it either.

Mayor Taylor: I don't have what Mr. Finnie was passing.

Vice Mayor Johnson: Let me put on the record how this generated. Mr. Irby, how was this generated?

Clerk Irby: That letter that you have in your hand Vice Mayor was sent to the City Attorney from my attorney.

Mayor Taylor: Wait a minutes, wait a minutes! Stuff is being passed to the Vice Mayor and not being passed to the Mayor. What's going on here?

Commissioner Holmes: And not to the commissioner here.

Mayor Taylor: Now you can't have but one person got all the documents. This here? Is this what she just gave? Now this letter was sent by an attorney's office. Were these numbers calculated by the Finance Department where payroll comes from? Did you calculate any numbers? Do you have a formal presentation for this Commission?

Dr. Orji: I don't have a formal presentation, but I calculated the estimated number that the payout to the Clerk could be if authorized by the Commission.

Vice Mayor Johnson: Mr. Zeke, what is the amount that you calculated?

Dr. Orji: The grand total including comp time is $237,628.61.

Vice Mayor Johnson: For the record, excuse me Commissioner Tydus, let the record reveal that the same correspondence letter that was sent by the complainant to the legal sufficient office for the City of Opa-locka includes the amount that the director of Finance stated. For the record $237,628,61 and although it is on a letterhead, it has already been...it was sent, according to this here, and what Mr. Zeke has said, this same amount is that the same amount which you have calculated?

Commissioner Holmes: Through whoever, the Manager to Mr. Zeke. Mr. Zeke, who authorized you to put those figures together to send to anyone, to send to somebody? Who authorized you to do that?

Dr. Orji: The manager asked me to.

Commissioner Holmes: See that's enough. The manager asked you to. That's enough right there, thank you. We know the rest.

Mayor Taylor: But you know this says here already, Mr. Manager, as the City has not terminated Mrs. Irby. We hadn't done that and...

Manager Finnie: Madam Mayor...

Attorney Geller: I received that letter by hand after the vote. That was the first I saw of it. It was handed to me after the vote.

Vice Mayor Johnson: It was also alleged that it would possibly be a 3-2 vote prior to now and so with the alleged already being discussed that there was a strong possibility of a 3-2 vote, I'm assuming that preparations were already in place. But let me get the record straight because I heard two things and I try to be very clear with this. Let the record show that Dorothy Dottie Johnson never received any correspondence prior to today nor have I had any discussions with anyone prior to today relate to this matter except for an inquiry. Let the record reveal. Should any correspondence every be delivered to me, it has always been my position as a Commission to assure that my colleagues receive a copy, always. Whether they do it to me or not. So I just want to make sure because it was stated that the Vice Mayor have and the Mayor doesn't and the Commission. I want the record to be clear. The Vice Mayor doesn't have anything...had not had anything and don't ever want to have anything without my colleagues being there. Nor do I have anytime to know who is going to be where and I'm so glad I stay on the third floor. Thank you very much.

Manager Finnie: Madam Mayor.

Mayor Taylor: The chair recognizes Mr. Finnie.

Manager Finnie: And I do want to clarity one issue. I was the one who ask Dr. Orji to give me a snapshot of the number, but the reason I asked him to give me a snapshot of the numbers because at one point in time we understood that Deborah would be considering retiring and so the question was, if she does retire, what would this mean to the city. And that's how I got the number. We did not anticipate the vote, although there were rumors.

That wasn't the reason why we did this analysis, but always try, when we can, to stay ahead of the curb and prepare and anticipate whatever the outcome is. Sometimes we do a good job, sometimes we don't.

Mayor Taylor: You asked for direction, is that correct?

Manager Finnie: Yes, in terms of the lump sum payment according to the contract, yes.

Mayor Taylor: And where would that be coming from?

Manager Finnie: Dr. Orji could you please discuss the sources of those dollars.

Dr. Orji: At this point no particular account number have been identified because that was not part of the assignment that given, but we will, if it is the will and the direction of these Commission to have to find the money somehow.

Vice Mayor Johnson: I think what I saw at the last meeting which I didn't have a copy of so I'm going to make sure because I didn't request a copy until today after I heard what was suppose to happen that happened. Um, and some of my colleagues may or may not have had the agreement and I would have thought that advance preparation would have been done on the numbers since it seem as though it was the desire. So I think it is up to the Commission and I would hope if the comments from the rear on my left hand side would just lower a little bit so I would not hear. I would greatly appreciate the kindness of your comments to yourself. But I also think it is up to the Commission to find where we are going to get this monies from to pay out because if I was her and her attorney, I would appeal and since the contract already says that, I'm only stating what the contract says and I'm not leading anyone with legal sufficiency. And maybe you all can consult with individuals from the rear. Maybe somebody here can tell us what that accrual would be but the amount would definitely increase so I'm sure we have a plan b. We know who's going to be the Interim City, how are we going to pay this? And I hope we are not going to go into the reserve money to pay this.

Mayor Taylor: Alright, your question is do we pay? Was that your original question? Mr. Finnie.

Manager Finnie: My question is that I want you to authorize the lump sum payment.

Mayor Taylor: Okay, that's where we are right now. We need to vote on that Mr. Geller?

Attorney Geller: You should.

Mayor Taylor: Alright then we need a vote. Mr. Finnie asked, do we make the lump sum payment. Alright!

Vice Mayor Johnson: Do we? According to the contract we have to. Yes, we have to vote. We have to give the Manager…

Attorney Geller: I do not want to suggest to you that not voting negates the obligation. I believe the obligation exists and is there. I understand that the Manager, because it exceeds his authority, he wants expressed authorization and I actually believe that authorization occurred when the Commission a) voted the contract and b) voted to do it without cause. However, it's not...I understand why the Manager wants the authorization and its best that you provide the expressed authorization. But if you didn't, that doesn't mean we don't owe the money.

Mayor Taylor: I just asked you, do we need a vote?

Attorney Geller: You should vote, yes, you should.

Mayor Taylor: Do you have something to say prior to?

Dr. Orji: I just wanted to put it on record, since we would pay her salary regardless, so this money would come from the payroll account because if she was to stay here for another nine months, we would be paying her salary.

Mayor Taylor: So it's coming out of the payroll account.

Vice Mayor Johnson: Could you hold that thought there! But if we go out for a search, stay with me for a minute, and you have two salaries proposed in your budget, you're going pay one for nine months. Where do you get the money for the additional one we will be searching for?

Dr. Orji: It may not be because the payroll account is not individual specific. There could be some additional money, some money that is still in the payroll for positions in the payroll account that have not been hired in the meantime that we can use money for.

Vice Mayor Johnson: Mr. Zeke, do your math now and you don't really have to answer tonight sir because if you would have said that a couple of months ago before you all hired the hiring that we told you all not to hire only for essential hiring, I would agree on that because I've done my math too. But because you have already filled those positions without our approval, I really want to know at least by tomorrow, where are you going to get the money from? Because the two positions that you all filled, right, do you know what I'm talking about, one in your office. Did you fill any positions in your office?

Dr. Orji: I filled the city accountant position.

Vice Mayor Johnson: Anything else?

Dr. Orji: No, that was the only position that was created by...

Vice Mayor Johnson: Okay and is that essential hiring Mr. Manager?

Manager Finnie: Yes ma'am.

Vice Mayor Johnson: Well according to the resolution that we brought essential hiring was defined as the police department. So that could have been a great savings there, but since you all took it to yourselves to define or redefine what we defined, I'm sort of concerned, but I'm sure you guys would be able to find the monies. We can make budget, we can find the money. And if not, I don't know no way of finding it so you don't have to advise anything from me. I won't have any comments on it, but I think you need to consult with the others.

Commissioner Holmes: You know with the new people Vice Mayor stated was hired, that's another thing that falls under the Manager. But let me say this, when the Assistant City Clerk step up in the Interim City Clerk position, that leaves her position open there. That money, whatever, would still be into the city. You know we try to blind fold people to let people know this is what is going to happen. But by her leaving, that still leaves a vacant in the City Clerk's Office until we hire someone else. Now if we don't hire someone else until September, October, of this year then that would be the cost we paying now for this position. I yield to you Madam Mayor.

Mayor Taylor: Alright, we need a vote to give the Manager direction.

Commissioner Holmes: Move it.

Vice Mayor Johnson: What is the motion?

Commissioner Holmes: To give the City Manager direction to pay the Clerk, to find the money to pay the Clerk.

Vice Mayor Johnson: I second the motion.

Mayor Taylor: Any discussion on this? Madam Clerk.

Clerk Irby: Commissioner Holmes?

Commissioner Holmes: Yes.

Clerk Irby: Vice Mayor Johnson?

Vice Mayor Johnson: Yes.

Clerk Irby: Commissioner Tydus?

Commissioner Tydus: Yes.

Clerk Irby: Mayor Taylor?

Mayor Taylor: Yes.

Clerk Irby: Motion passes.

Note: This concludes the verbatim portion of these minutes.

Vice Mayor Johnson left the meeting.

Commissioner Holmes stated that he would not get into the charges he made against the City Manager, but the morale of the city employees is low under him. He mentioned that he brought this matter to the City Manager's attention on more than one occasion and he would hope he took notice of the resolution to give him a package in the event he decided to resign.

B. ACCOUNTS PAYABLE:

20. OFFICIAL BOARD REPORTS:

Note: This portion of the minutes is transcribed in verbatim format.

John Riley: Madam Mayor, I'm here on behalf on the Civil Service Board. I am a native of Alabama, I was born there, I started with Dr. King and the Civil Rights Movement in 1957. I served two tours in Vietnam and I have no felony record whatsoever. And for people to suggest, from this board, that somehow, I'm the father of nine, I've nine children that carry my name and my name is all I have. To suggest somehow that I am corrupt or that what the board does is corrupt and all of the decisions that the Civil Service Board has made the vote has been unanimous. So you're saying that Mrs. Jackson, Mrs. Pat Ellis, Mr. Randolph Aikens and Mr. Nelson Zonicle, that we're all corrupt. The Civil Service Board is a board of the Commission, okay. One of your colleagues brought supposedly some charges. I ask you for a public hearing, even though the attorney indicated that state statutes supersede our laws, our laws don't conflict with the state statutes. He said that was from the 50's. Commissioner Tydus as the City Clerk, worked on this code book and it was redone in 1983 and went into effect on July 1, 1983. Totally reinvent. I know what I'm talking about. I have never, and there's never been a deal made with anyone on that board. Don't have to, it won't happen. We convene ourselves as quasi judiciary board. Every member, we have a trial, that's what it is, it's a trial, it's a (inaudible) hearing. Each side presents their case. We the board follow the evidence. If the evidence is there, we find on the evidence, if it is not there, we find on the evident. That's what we're required to do; that's what's in the charter. That's what is in the rule of procedure. The only thing we did was to follow the Charter. When we went to court, the judge ruled under declaratory judgment. A declaratory judgment is when the court sees in a document. The judge ruled on the charter, that our charter says what it says. It didn't rule for the employee, the employee filed a case, but the declaratory judgment was that findings of the board are conclusive. The same language that's in the charter. People are talking about our charter, but it's our charter. It's unique to Opa-locka and all this does, that the Civil Service Board do, it to give due process to city employees. Due process is required by the 14th amendment of the Constitution of the United States and the State of Florida and you have taken an oath that you will uphold the Constitution of the United States and the State of Florida and the Charter of the City of Opa-locka. That's what I do. But then I sat here and you belittle and accuse me and accuse the board of doing something that you know is wrong. That's nothing but the devil (inaudible) and I won't stand for it. You let that liar put that on record and it's a lie; a bold faced lie. I want

a public hearing and if you don't give it to me, you think she's not afraid of suing, I would sue you like crazy. You will not diminish me, you will not belittle my children, you will not belittle my family because a lie will not stand. I served this city for the past thirty years, I've never asked you for nothing. I don't get a penny, we're volunteers. I was in court because I was defending. You sue me, I will defend myself and I will take what I believe is right. I know this job; I know every inch of it. I don't have to interpret, but when the court says, it says what it says. This charter, it says what it says. That oath that you took, it says what it says. The Constitution of the United States and the State of Florida is says what it says. I want a public hearing and after that public hearing and I don't want her to participate, I want you to do it, I want it done now and I want to prove that she's telling a bold faced lie and I will prove it. Thank you very much.

Commissioner Holmes: Mr. Geller, bring a resolution for Mr. Riley for a public hearing.

Note: This concludes the verbatim portion of these minutes.

21. CITY ATTORNEY'S REPORT:

Attorney Geller provided the Commission with information on a gentleman who is writing a book on domes, arches and minarets across the United States relating to the history of Islamic and Arabic inspired architecture and he would like to use a photograph he took at Historic City Hall as the cover to his book. In return, this individual would provide the city with a copy of his book and make a donation of $100.00 to a literacy campaign. If it's the Commission pleasure he could draft a resolution for the next commission meeting agenda.

Commissioner Holmes suggested that the City Attorney request ¼ of the proceeds from the sale of his book in exchange for utilizing the picture of Historic City Hall.

Commissioner Tydus said it should be more than $100.00 but ¼ of the proceeds is a bit much. Also, if the city agrees on a dollar amount, they should get some type of honorable mention on the front cover or in the book.

Attorney Geller said he could simply put the item on the agenda for the next meeting, but he just wanted to bring it to the attention of the Commission.

22. CITY CLERK'S REPORT:

Clerk Irby provided a brief overview of her history with the city.

Mr. Riley explained that compensatory time was outlawed by the Federal Courts and it is more in lieu of overtime and it is not for salaried employees.

23. MAYOR/COMMISSION REPORT:

Mayor Taylor thanked everyone for their support in her State of the City Address.

As elected officials, she said the Commission is there to serve and they cannot come in and say everything they want to say then leave. That's unfair and it's disrespectful and she does appreciate her colleagues taking check on themselves for that.

24. OFFICIAL BOARD APPOINTMENTS:

It was moved by Commissioner Holmes, seconded by Commissioner Tydus to reappoint Vilmaida Rodriguez to the Zoning Board of Appeals.

There being no discussion, the motion passed by a 3-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Not present
Commissioner Holmes	Yes
Vice Mayor Johnson	Not present
Mayor Taylor	Yes

25. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Holmes, seconded by Commissioner Tydus to adjourn the meeting at 11:27 p.m.

MYRA L. TAYLOR
MAYOR

ATTEST:

JOANNA FLORES
INTERIM CITY CLERK